



CHAPTER lxii.

An Act to provide for the transfer to the mayor aldermen and burgesses of the borough of Banbury of the undertaking of the Banbury Water Company and of certain waterworks and property of the Banbury Rural District Council to authorise the said mayor aldermen and burgesses to construct waterworks and to acquire lands to define the limits within which they may supply water and to confer further powers upon them with regard to the supply of water therein to make further provision with regard to the finance of the said borough and for other purposes.

[6th November 1946.]

WHEREAS the borough of Banbury (in this Act referred to as "the borough") is a borough under the government of the mayor aldermen and burgesses of the borough (in this Act referred to as "the Corporation"):

And whereas the Banbury Water Company (in this Act referred to as "the company") were incorporated by the Banbury Waterworks Act 1865 and by the Banbury Water-^{28 & 29 Vict.} works Acts and Orders 1865 to 1943 are authorised to supply ^{c. xvi.} water within the borough and the parishes of Bloxham Bodicote East Adderbury Milton and West Adderbury in the rural district of Banbury in the county of Oxford and the parish of Warkworth in the rural district of Brackley in the county of Northampton:

And whereas the company promoted a Bill in Parliament in the session of 1936-37 and the Corporation presented a petition against that Bill in the House of Lords:

And whereas the Corporation withdrew their said petition in consideration (inter alia) of an agreement made between the company and the Corporation and dated the tenth day of June one thousand nine hundred and thirty-seven:

And whereas it was provided by the said agreement (inter alia) that if the Corporation should promote a Bill in Parliament in the session of 1945-46 for the acquisition of the undertaking of the company the company should not oppose such Bill except in so far as it might be necessary in order to secure the insertion therein of clauses for their protection:

And whereas the company have agreed with the Corporation the terms upon which their undertaking should be transferred to the Corporation and it is expedient that the said undertaking should be transferred to and vested in the Corporation in manner provided by this Act and upon and subject to the terms and conditions herein contained:

And whereas it is expedient that the Corporation should be empowered to construct the waterworks and other works by this Act authorised and by means of those waterworks and the works transferred to them under this Act to intercept abstract take and use water under the powers conferred by this Act for the purposes of their water undertaking:

And whereas it is expedient that in addition to the said parishes within which the company are authorised to supply water the Corporation should be empowered to supply water within the areas in the said rural district of Banbury mentioned in this Act and that certain works and property of the rural district council of that rural district should be transferred to the Corporation and that further powers should be conferred upon the Corporation with respect to the supply of water within the said parishes and areas as by this Act provided:

And whereas it is expedient that further and better provision should be made for the finances of the borough and that the powers of the Corporation in regard thereto should be enlarged as by this Act provided:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared for the purposes hereinafter mentioned and such estimates are as follows:—

	£
The purchase of lands and easements ...	6,300
The construction of the works by this Act authorised	39,100
The provision of new water mains and other waterworks purposes	50,000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed : 23 & 24 Geo. 5.
c. 51.

And whereas plans and sections showing the lines and levels of the works by this Act authorised such plans showing also the lands which may be acquired or used by the Corporation compulsorily under the powers of the Act together with a book of reference to the said plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of all such lands and describing the same have been deposited with the clerk of the county council of the administrative county of Oxford and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Banbury Corporation Short title. Act 1946.

2. This Act is divided into Parts as follows :—

Act divided
into Parts.

Part I.—Preliminary.

Part II.—Transfer of undertaking of company &c.

Part III.—Waterworks and lands.

Part IV.—Supply of water.

Part V.—Financial and miscellaneous.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (that is to say) :— Incorporation
of Acts.

(a) The Lands Clauses Acts with the following exceptions and modification :—

(i) Sections 127 to 132 of the Lands Clauses Consolidation Act 1845 are not incorporated with this Act; 8 & 9 Vict.
c. 18.

(ii) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section;

PART I.

—cont.

23 & 24 Vict.

c. 106.

8 & 9 Vict.

c. 20.

(iii) Section 5 of the Lands Clauses Consolidation Acts Amendment Act 1860 is not incorporated with this Act;

- (b) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and also section 16 (Works which may be executed) of that Act;
- (c) The provisions of the Third Schedule to the Act of 1945 except section 7 (Power to acquire easements for underground works) and Part III (Compensation water) and Part XV (Financial provisions applicable to water companies) of that schedule:

Provided that—

- (i) in and for the purposes of this Act the expression “ the undertakers ” or “ the promoters of the undertaking ” or “ the company ” where used in such incorporated enactments shall mean the Corporation;
- (ii) for the purposes of the said section 85 of the Lands Clauses Consolidation Act 1845 as incorporated with this Act the Corporation shall be deemed to be a railway company and section 36 (except paragraph (4) thereof) of the Railway Companies Act 1867 shall apply accordingly;
- (iii) for the purposes of the incorporated provisions of the Railways Clauses Consolidation Act 1845 “ the railway ” shall mean the works by this Act authorised to be constructed by the Corporation and the centre lines of the embankments of the reservoir and of the lines of pipes authorised by this Act as shown on the deposited plans shall be deemed to be the centre of the railway;
- (iv) for the purposes of the incorporated provisions of the Third Schedule to the Act of 1945 section 2 of that schedule shall be read and have effect as if the expression “ the deposited plans ” were substituted therein for the expression “ the plans submitted to the Minister ” and the expression “ the deposited sections ” were substituted therein for the expression “ the said plans ” wherever the last-mentioned expression occurs in that section.

30 & 31 Vict.
c. 127.

Interpretation.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts incorporated in whole or in part with this Act have the same respective meanings unless the subject or context otherwise requires.

(2) In this Act unless the subject or context otherwise requires—

PART I.
—cont.

“ the borough ” means the borough of Banbury;

“ the council ” means the council of the borough;

“ the Corporation ” means the mayor aldermen and burgesses of the borough acting by the council;

“ the rural council ” means the rural district council of the rural district of Banbury;

“ the town clerk ” means the town clerk of the borough;

“ the Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and Part II of the Town and Country Planning Act 1944;

9 & 10 Geo. 5.
c. 57.
7 & 8 Geo. 6.
c. 47.

“ the company ” means the Banbury Water Company;

“ the day of transfer ” means the first day of January one thousand nine hundred and forty-seven;

“ the undertaking of the company ” means the undertaking of the company as existing on the day of transfer including—

(a) all the lands buildings reservoirs boreholes pumping stations intakes filters filter beds works machinery adits mains pipes meters plant stock spare parts tools apparatus vehicles stores furniture chattels and effects then belonging to the company;

(b) all investments securities funds reserves surplus profits book debts moneys deposits bank balances and cash then in the hands of the company or in the hands of their bankers agents or servants but the company may retain such a sum of money as may be sufficient to enable them to pay the dividends which they may pay in pursuance of the section of this Act of which the marginal note is “ Payment of dividends for year 1946 ”;

(c) all plans maps books reports specifications letters records and other documents relating to the undertaking whether the same shall be in the possession of the company or in that of their solicitors agents resident or consulting engineers or other persons but excluding therefrom the directors' minute books and all books and papers relating exclusively to the shareholders or stockholders in the capital or to the constitution of the company which it may be necessary for the company to retain for the purpose of winding up the company;

PART I.
—cont.

(d) all rights powers easements interests and privileges then vested in or had or enjoyed by the company; and

(e) all other the real and personal property then belonging to the company;

but subject to all mortgages and charges in respect of moneys raised by the company by borrowing and owing at the day of transfer and subject to the debts outgoings and liabilities incurred by the company which the Corporation are required to pay and discharge by the section of this Act of which the marginal note is "Corporation to pay debts and be entitled to rents &c. after transfer;"

"the appointed day" means such day prior to the expiration of eighteen months from the date of the passing of this Act as may be agreed between the Corporation and the rural council or if no such day be agreed the day which immediately follows the expiration of the said eighteen months;

"the conservators" means the Conservators of the River Thames;

"Corporation four per centum stock" means the stock of the Corporation created by virtue of the provisions of the section of this Act of which the marginal note is "Creation of stock as consideration for transfer" for the purposes of or in connection with the transfer of the undertaking of the company to the Corporation;

"the water undertaking" means the water undertaking of the Corporation as from time to time authorised;

"the arbitrator" means the arbitrator or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919 as modified by Part II of the Town and Country Planning Act 1944;

"the Act of 1933" means the Local Government Act 1933;

"the Act of 1937" means the Banbury Waterworks Act 1937;

"the Act of 1945" means the Water Act 1945;

"the general rate fund" and "the general rate" mean respectively the general rate fund and the general rate of the borough;

"the revenues of the Corporation" includes the general rate fund and all rates exchequer contributions and

1 Edw. 8. &
1 Geo. 6.
c. lxxxviii.
8 & 9 Geo. 6.
c. 42.

other revenues whether arising from land or undertakings or from any other source receivable by the Corporation;

PART I.
—cont.

“ statutory borrowing power ” includes any power of borrowing conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 of the Act of 1933;

“ statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any security of the Corporation; 38 & 39 Vict.
c. 83.

“ authorised securities ” means any mortgages bonds bills or stock or other securities which the Corporation have been or are for the time being authorised to grant create or issue or upon or by means of which the Corporation are for the time being authorised to raise money;

“ the Minister ” means the Minister of Health.

PART II.

TRANSFER OF UNDERTAKING OF COMPANY &C.

5. On the day of transfer the undertaking of the company shall by virtue of this Act be transferred to and vested in the Corporation upon and subject to the terms conditions and provisions contained in this Act. Transfer of
undertaking
of company.

6.—(1) As and by way of consideration for the transfer to the Corporation of the undertaking of the company the Corporation shall as soon as reasonably practicable after the day of transfer issue in the respective names of the holders of ordinary shares or stock or preference shares in the capital of the company whose names appear in the books of the company upon the day on which the register of transfers is closed in accordance with the section of this Act of which the marginal note is “ Notification of names &c. of shareholders of company and closing of transfer books ” and whose names (together with all necessary particulars) are delivered to the Corporation by the company in accordance with the said section the following amounts of Corporation four per centum stock to be issued in exchange for the ordinary shares and stock Consideration
for transfer
of undertaking
of company.

PART II.
—cont.

and preference shares in the capital of the company (that is to say):—

- (a) for each ordinary share in the capital of the company twenty-five pounds of Corporation four per centum stock;
- (b) for every one hundred pounds of ordinary stock in the capital of the company entitled to a maximum dividend at the rate of five per centum per annum one hundred and twenty-five pounds of Corporation four per centum stock;
- (c) for each preference share in the capital of the company entitled to a preferential dividend at the rate of five per centum per annum twelve pounds and ten shillings of Corporation four per centum stock;
- (d) for each preference share in the capital of the company entitled to a preferential dividend at the rate of four and a half per centum per annum eleven pounds and five shillings of Corporation four per centum stock;
- (e) for each preference share in the capital of the company entitled to a preferential dividend at the rate of four per centum per annum ten pounds of Corporation four per centum stock;

and so in proportion for any amount of ordinary stock of the company less than one hundred pounds:

Provided that in every case in which under the foregoing provisions of this section a holder of ordinary stock or preference shares in the capital of the company would be entitled to a fractional part of one pound of Corporation four per centum stock the Corporation in lieu of issuing such fractional part of Corporation four per centum stock shall pay to the company for distribution to such holder a sum of money equal to the nominal value of such fractional part.

(2) As soon as reasonably practicable after the day of transfer the Corporation shall deliver to the company for distribution by the company certificates for Corporation four per centum stock for the amounts to be issued under the foregoing provisions of this section made out in the names of the persons entitled thereto and the receipt in writing of the directors of the company or of any liquidator appointed for winding up the company for any such certificates and any sums of money paid to them or him in lieu of fractional parts of one pound of Corporation four per centum stock shall effectually discharge the Corporation from the obligations of this section in respect of the certificates and sums of money so acknowledged to be received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof.

7. Not less than twenty-one days before the day of transfer the company shall deliver to the Corporation a statement containing the names of all holders of shares or stock in the capital of the company with their addresses and descriptions and the number or amount and the class of the shares or stock held by such holders respectively and the amount of Corporation four per centum stock and sums of money (if any) to which such holders are respectively entitled under the provisions of this Part of this Act. The register of transfers of the company shall be closed from the day which immediately precedes the date upon which the said statement is so delivered.

PART II.

—cont.

Notification of names &c. of shareholders of company and closing of transfer books.

8.—(1) The mortgages referred to in the First Schedule to this Act if outstanding on the day of transfer shall be deemed to have been executed by the Corporation in the exercise of a statutory borrowing power conferred upon them by the section of this Act of which the marginal note is "Power to borrow" and together with the interest accruing thereon respectively after the day of transfer shall on that day become and thereafter be a charge on the revenues of the Corporation as if the Corporation were substituted for the company in respect of such mortgages but in other respects shall be subject to the same terms as would have been applicable thereto respectively if this Act had not been passed and the Corporation shall indemnify and hold harmless the company against any claims in respect thereof.

As to mortgages of company.

(2) The Corporation may by agreement with the holder of any such mortgage at any time substitute for any mortgage so held by him any security of the Corporation or pay off the amount secured by such mortgage and redeem the security with moneys raised under the powers of this Act and the holder of any such mortgage whether or not he is a trustee or under any disability may agree with the Corporation to accept any security of the Corporation in lieu of money in consideration for his mortgage.

9. Except as may be agreed between the Corporation and the company the Corporation shall pay and discharge (so far as the same shall not have been previously discharged by the company) the debts outgoings and liabilities incurred by the company in respect of the undertaking of the company (other than debts outgoings and liabilities in respect of any mortgages or other similar charges or in respect of any contract agreement liability or other obligation made or entered into in contravention of the provisions of the section of this Act of which the marginal note is "Maintenance of undertaking of company until transfer") and outstanding on the day of transfer and properly chargeable against the company and as from the day

Corporation to pay debts and be entitled to rents &c. after transfer.

PART II.
—cont.

of transfer the Corporation shall be entitled to all rates rents profits and other receipts receivable in respect of the undertaking of the company.

Evidence
of transfer.

10. The production of a King's Printers' or Royal Assent copy of this Act duly stamped together with a receipt for the consideration for the purchase of the undertaking of the company purporting to be signed by two directors or (if a liquidator be duly appointed) the liquidator of the company shall (unless it be proved that the consideration has not been paid) be conclusive evidence in all courts and proceedings of the transfer and vesting in the Corporation of the undertaking of the company.

As to lodgment
of purchase
money &c.
into court.

15 & 16 Geo. 5.
c. 49.

11. If from any cause the Corporation are unable to obtain the receipt in writing of two directors or (if a liquidator be duly appointed) the liquidator of the company for any money or Corporation four per centum stock to be paid or delivered to the company (or any other person with the consent of the company) under this Part of this Act they may lodge the money or Corporation four per centum stock in the Supreme Court in accordance with rules made under section 146 of the Supreme Court of Judicature (Consolidation) Act 1925 and a certificate given in accordance with those rules stating that such money or stock has been so lodged shall have the same effect as the receipt of two directors of the company or of such liquidator as aforesaid.

Winding up
and dissolution
of company.

12.—(1) From and after the day of transfer the company shall subsist only for the purpose of receiving and recovering the money or stock to which they or the shareholders or stockholders of the company are entitled under this Part of this Act and of winding up their affairs and carrying into effect the purposes of this Act so far as they relate to the company and the directors of the company who are in office at the day of transfer and the survivor or survivors of those directors shall continue without re-election to hold office and those directors or the majority of them or (if a liquidator of the company be duly appointed) the liquidator shall have power and authority to take with respect to the company all proceedings necessary for carrying into effect the purposes of this section.

(2) If the number of directors of the company be reduced by death resignation or otherwise below two before the completion of the winding up of the company or the appointment of a liquidator thereof the continuing director shall from time to time appoint a person or persons who immediately before the day of transfer was or were a shareholder or shareholders or a stockholder or stockholders of the company to fill the vacancy or vacancies so caused.

(3) As soon as may be after the day of transfer the directors of the company or such liquidator as aforesaid shall proceed to wind up the affairs of the company and shall distribute the certificates of Corporation four per centum stock and sums of money (if any) to and among the several persons who on the day of transfer are the registered holders of ordinary shares or stock or preference shares of the company or their respective executors administrators and assigns in accordance with the provisions of this Part of this Act.

(4) The company shall on publication in a local newspaper or newspapers circulating in the limits within which the company are at the day of transfer authorised to supply water of a notice signed by two or more directors or such liquidator as aforesaid and certifying that all the provisions of this Act relating to the company have been complied with be and are hereby dissolved.

(5) In case the directors of the company or such liquidator as aforesaid are for six months after the day of transfer unable after diligent inquiry to ascertain the person to whom any certificate of stock or money ought to be delivered or paid or who can give an effectual receipt for the same they may pay such stock or money into court as if it belonged to a trust of which they were trustees.

13. As from the date of the passing of this Act and until the day of transfer the company shall—

Maintenance
of undertaking
of company
until transfer.

(a) carry on their undertaking efficiently in the ordinary course of business and shall maintain all assets comprised in their undertaking in fair working order as a going concern; and

(b) permit a member of the council (appointed by the council for the purpose and accompanied if desired by an officer of the council or one of their consulting advisers) to attend the meetings of the board of directors of the company;

but neither the company nor the directors of the company shall except with the consent of the Corporation in writing under the hand of the town clerk (which consent shall not be unreasonably withheld)—

(i) make any outlay or incur any liability in respect of the said undertaking otherwise than in the ordinary course of business;

(ii) create or issue any further shares or stock in the capital of the company or raise any money by borrowing on mortgage or by the creation and issue of debentures or debenture stock;

(iii) incur any capital expenditure;

PART II.
—cont.

- (iv) alter the rates rents or charges for water or the rental of meters and other appliances in operation on the first day of July one thousand nine hundred and forty-five;
- (v) increase the remuneration of the directors or auditors or (otherwise than in pursuance of any award of a joint industrial council) of any of the officers or servants of the company or enter into any new agreement or contract of service with any such officer or servant;
- (vi) grant any pensions or retiring gratuities; or
- (vii) enter into any contract in respect of or affecting the said undertaking (except such contracts as are in the ordinary course of business) the duration of which shall extend beyond the day of transfer.

Payment of
dividends for
year 1946.

14. The directors of the company may declare and pay at any time after the first day of December one thousand nine hundred and forty-six in respect of the year ending on the thirty-first day of that month dividends less income-tax on the ordinary shares or stock or preference shares in the capital of the company at rates not exceeding—

- (i) in respect of the ordinary shares or stock of the company the maximum rates of dividend per annum payable respectively in respect of those shares or stock;
- (ii) in respect of the preference shares of the company the preferential annual rates of dividend respectively assigned to those shares;

less any dividends previously paid in respect of that year.

Certificates &c.
to remain in
force.

15. All transfers or other dispositions of any ordinary shares or stock or preference shares of the company made but not registered before the day of transfer shall notwithstanding the provisions of this Part of this Act be valid and have due effect given to them respectively as transfers or dispositions of the amounts of Corporation four per centum stock and sums of money (if any) which represent the ordinary shares or stock or preference shares of the company thereby expressed to be transferred or disposed of and which are substituted for the same by this Part of this Act although the instrument of transfer or disposition shall describe the same as ordinary shares or stock or preference shares in the capital of the company.

Substituted
securities
to be held
in same rights.

16.—(1) Subject to the provisions of this Part of this Act any stock of the Corporation issued and any sums of money paid to the holders of ordinary shares or stock or preference shares or mortgages of the company in pursuance of this Part of this Act shall be held in the same rights on the same trusts

and subject to the same powers provisions charges and liabilities as those in on or subject to which the said shares or stock or mortgages of the company were held immediately before the day of transfer and so as to give effect to and not to revoke any deed will or other instrument or testamentary or other disposition disposing of or affecting the shares or stock or mortgages and every such deed will instrument or disposition shall take effect with reference to the stock of the Corporation and such sum of money as aforesaid.

PART II.
—cont.

(2) Any bequest of or any covenant or provision of any deed will or other instrument relating to any specific number or nominal amount of shares or stock in the capital of the company or any mortgage of the company shall be held to apply to the security of the Corporation or sum of money which under the provisions of this Part of this Act is issued or (in the case of any sum of money) paid in substitution for such specific number or nominal amount of shares or stock in the capital of the company or such mortgage as aforesaid.

(3) Trustees executors and administrators and all other holders in any representative or fiduciary capacity and persons under disability may and shall accept the security of the Corporation so issued to them or sums of money so paid to them in pursuance of the provisions of this Part of this Act for the shares or stock in the capital of the company or mortgages of the company held by them and may hold dispose of or otherwise deal with such security of the Corporation or sums of money in all respects as they might have held disposed of or otherwise dealt with the shares or stock or mortgages of the company for which the same are substituted.

17. If on the day of transfer any action arbitration or proceedings or any cause of action arbitration or proceedings in relation to the undertaking of the company shall be pending or existing by or against or in favour of the company the same shall not abate or be discontinued or be in any wise prejudicially affected by reason of the transfer of the undertaking of the company to the Corporation but may be continued prosecuted and enforced by against or in favour of the Corporation as and when it might have been continued prosecuted and enforced by against or in favour of the company if this Act had not been passed but not further or otherwise.

Pending
actions not to
abate.

18. All contracts agreements conveyances deeds leases and other instruments entered into or made with or by the company or the predecessors of the company in relation to the undertaking of the company (other than any contract agreement conveyance deed lease or other instrument entered into or

Contracts to be
binding.

PART II.
—cont.

made in contravention of the provisions of the section of this Act of which the marginal note is "Maintenance of undertaking of company until transfer") and in force on the day of transfer shall as from that day be as binding and of as full force and effect against or in favour of the Corporation and may be enforced as fully and effectually as if instead of the company the Corporation had been a party thereto or bound thereby or entitled to the benefit thereof.

Collection of
outstanding
debts.

19. All rates rents and charges and other sums and debts on the day of transfer due and payable or accruing due or payable to the company in respect of the undertaking of the company shall be due and payable to and may be collected recovered and enforced by the Corporation as the same might have been payable to and collected recovered and enforced by the company if this Act had not been passed.

Books &c.
to remain
evidence.

20. All books and documents which if the transfer of the undertaking of the company to the Corporation had not been made would have been evidence in respect of any matter for or against the company shall on and after the day of transfer be admitted in evidence in respect of the same or the like matter for or against the Corporation.

Officers of
company to be
accountable
for books.

21. All officers and persons who at the day of transfer have in their possession or under their control any books documents papers moneys or effects forming part of the undertaking of the company or to which the company would but for the transfer of that undertaking to the Corporation have been entitled shall be liable to account for and deliver up the same to the Corporation or to such persons as the Corporation may appoint to receive the same and subject to the same consequences on refusal or neglect as if such officers and persons had been appointed by and become possessed of such books documents papers moneys and effects for the Corporation.

Costs of
winding up
company.

22. The Corporation shall as soon as reasonably practicable after the day of transfer pay to the company the sum of one hundred pounds in respect of or towards the expense of winding up the company.

Compensation
to directors
and auditors
of company.

23. The Corporation shall on the day of transfer or as soon as possible thereafter issue Corporation four per centum stock as compensation for loss of office—

(a) to the persons holding office immediately before the day of transfer as directors of the company to the nominal amount of six thousand and three hundred pounds to be divided among them as they or a majority of them may agree Provided that if any person who held office as a director of the company

on the first day of July one thousand nine hundred and forty-five shall before the day of transfer have ceased to hold such office the said amount of four per centum Corporation stock shall be reduced by an amount equal to seven times the amount which that director received from the company as director's fees in respect of the year ended the thirty-first day of December one thousand nine hundred and forty-four;

PART II.
—cont.

- (b) to the persons holding office immediately before the day of transfer as auditors of the company to the nominal amount of three hundred pounds.

24. The Corporation shall pay or continue to pay to the persons whose names are set out in the Second Schedule to this Act during their respective lives by way of pension the sums respectively set out opposite their names in that schedule. Provided that in the case of the persons mentioned in Part II of the said schedule the payment of such sums shall be subject to the respective conditions set out in the third column of the said Part II. Payment of pensions.

25.—(1) Except as otherwise in this Act provided every officer and servant (other than the directors and auditors of the company and the persons mentioned in the Second Schedule to this Act) in the employment of the company at the day of transfer as shall be willing to enter the service of the Corporation shall as from the day of transfer become an officer or servant of the Corporation and shall hold his office or situation by the same tenure and upon like terms and conditions as he would have held the same under the company if the transfer of the undertaking of the company to the Corporation had not taken place and while performing the same or analogous duties shall receive not less salary or wage than he would have been entitled to if the said transfer had not taken place: Existing officers and servants of company.

Provided that if any officer or servant of the company is on the day of transfer temporarily absent from his office or employment on account of service in the armed forces of the Crown (hereinafter referred to as "war service")—

- (i) such officer or servant shall notwithstanding such war service be deemed for the purposes of the foregoing provisions of this section to be in the employment of the company on the day of transfer and upon release from such war service shall be entitled to enter the service of the Corporation under the said provisions as if the date of such release were referred to therein instead of the day of transfer;

PART II.
—cont.7 & 8 Geo. 6.
c. 15.

- (ii) the Corporation shall continue to pay to such officer or servant during the period of his war service an allowance at the same rate and subject to the same conditions as the allowance paid to him by the company immediately before the day of transfer; and
- (iii) nothing in this section shall alter prejudice or affect the operation of the provisions of the Reinstatement in Civil Employment Act 1944.

(2) Every officer or servant of the company who enters the service of the Corporation in accordance with the foregoing provisions of this section (hereinafter referred to respectively as an "existing officer" and an "existing servant") shall perform such duties in connection with the water undertaking as they may respectively be required to perform by the Corporation.

(3) The Corporation may abolish the office or situation of any existing officer or existing servant which they deem unnecessary and any existing officer or existing servant required at any time within a period of five years after the day of transfer to perform duties which are not analogous or are an unreasonable addition to those which as an officer or servant of the company he was required to perform in connection with the undertaking of the company may relinquish his office or situation.

(4) Every existing officer or existing servant whose office or situation is so abolished or who so relinquishes his office or situation as aforesaid or who otherwise suffers any direct pecuniary loss in consequence of the transfer of the undertaking of the company to the Corporation shall be entitled to be paid by the Corporation compensation for such pecuniary loss.

(5) If within a period of five years from the day of transfer the services of any existing officer or existing servant are dispensed with by the Corporation because his services are not required and not on account of misconduct or incapacity or the salary of an existing officer or an existing servant is reduced on the ground that his duties have been diminished in consequence of the transfer of the undertaking of the company to the Corporation such existing officer or existing servant shall be deemed to have suffered direct pecuniary loss in consequence of the said transfer.

(6) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this section the provisions of the Fourth Schedule to the Act

of 1933 shall apply with the following and any other necessary modifications:—

PART II.
—cont.

- (a) service with any water undertaker shall be treated as service with a local authority;
- (b) any reference in that schedule to an officer shall be construed as a reference to an existing officer or an existing servant; and
- (c) any reference in that schedule to the local authority or the clerk of the authority shall be construed as a reference to the Corporation or the town clerk (as the case may be).

(7) Every existing servant whose age does not exceed fifty-five years on the day of transfer and who was in the permanent employ of the company shall be entitled to participate in the superannuation scheme of the Corporation on the same terms as the existing servants of the Corporation.

(8) Any existing servant whose age exceeds fifty-five years on the day of transfer shall be treated by the Corporation in a manner not less favourable to such servant than a servant of the Corporation who entered the employment of the Corporation at an age exceeding fifty-five years.

26.—(1) The Banbury Waterworks Act 1865 the Banbury Water Company (Modification of Charges) Order 1927 the Act of 1937 the Banbury Water Order 1943 and the Ministry of Health Provisional Order Confirmation (Banbury Water) Act 1943 shall as from the day of transfer be and are hereby repealed except so far as may be necessary to give effect to the provisions of this Act and except the provisions (hereinafter in this section referred to as "the excepted provisions") of those enactments which are referred to in the Third Schedule to this Act.

Partial repeal of Banbury Waterworks Acts and Orders 1865 to 1943.
28 & 29 Vict. c. xvi.
6 & 7 Geo. 6. c. xi.

(2) Subject to the provisions of this Act the Corporation shall as from the day of transfer have the powers and rights of and be subject to the obligations contained in the excepted provisions as if the Corporation were named in the excepted provisions instead of the company and the excepted provisions shall for the purposes of the application to the Corporation of the provisions of the Third Schedule to the Act of 1945 which are incorporated with this Act be deemed to be a special Act with which such last-mentioned provisions are incorporated.

27.—(1) On the appointed day all waterworks mains pipes lands easements and buildings belonging to the rural council and used by them for the supply of water within any of the parishes referred to in the section of this Act of which the

Transfer of waterworks of rural council.

PART II.
—cont.

marginal note is "Limits of supply" and all obligations of the rural council in respect of such waterworks mains pipes lands easements and buildings (other than obligations in respect of money borrowed) and in respect of the supply of water to any premises by means of any such waterworks mains or pipes shall be transferred to vested in and attach to the Corporation and all agreements contracts deeds and other instruments affecting the rural council and relating to such waterworks mains pipes lands easements and buildings in force on the appointed day shall have effect as if the Corporation were a party thereto instead of the rural council.

(2) The Corporation shall in every financial year commencing on or after the appointed day repay to the rural council sums equivalent to the sums (if any) to be expended during that year by the rural council in the payment of interest on and for the repayment of moneys borrowed before the appointed day in respect of the waterworks mains pipes lands easements and buildings transferred to and vested in the Corporation under or by virtue of this section. Provided that such sums shall unless otherwise agreed be paid by half-yearly payments. Provided also that if the appointed day does not coincide with the commencement of a financial year the Corporation shall also in respect of the portion of the financial year between the appointed day and the commencement of the next following financial year pay to the rural council such proportion of the sums expended or to be expended by them during the financial year in which the appointed day occurs in the payment of interest on and for the repayment of such borrowed moneys as aforesaid as is attributable to that portion.

(3) If any question shall arise as to the method of calculating for the purposes of subsection (2) of this section the sums expended or to be expended by or repaid to the rural council the same shall be settled by an arbitrator to be agreed upon between the Corporation and the rural council or failing agreement to be appointed on the application of either party by notice in writing to the other of them by the President of the Institute of Chartered Accountants in England and Wales.

(4) Notwithstanding the foregoing provisions of this section the Corporation and the rural council (with the consent of any person from whom the rural council have borrowed any such moneys as aforesaid) may enter into and carry into effect agreements for the transfer to the Corporation by the rural council of the outstanding loan or loans to the rural council by such person and as from the date upon which such transfer takes effect all liability in respect of any loan or loans so transferred shall be borne by the Corporation.

(5) The rural council shall be entitled to all water rates water rents meter rents and other sums of money accruing due up to or which shall have accrued due or become payable before the appointed day in respect of the supply of water by means of any works or property transferred to the Corporation under or by virtue of this section and the Corporation shall be entitled to all such rates rents and sums of money which shall accrue due or become payable on or after that day and where necessary for the purposes of this section such rates rents and sums of money shall be apportioned between the rural council and the Corporation. Provided that so much of any such rates rents and sums of money and of any deposit or other charges received by the rural council before the appointed day as is in respect of any period subsequent to that day shall be paid by the rural council to the Corporation.

(6) If in consequence of this section or anything done in pursuance thereof any officer or servant of the rural council suffers direct pecuniary loss by reason of the determination of his employment or the diminution of his emoluments he shall unless provision for his compensation is made by or under any other enactment for the time being in force be entitled to receive compensation under this section from the Corporation and for the purposes of any claim for compensation under this section the provisions of subsections (2) (3) and (6) of section 150 of the Act of 1933 and of the Fourth Schedule to that Act shall apply as if references to a scheme or order made under Part VI of that Act were construed as references to this section and as if this section came into operation on the appointed day.

PART III.

WATERWORKS AND LANDS.

28. The Corporation may—

- (i) maintain repair renew alter enlarge improve and extend the reservoirs wells boreholes pumping stations mains pipes and other waterworks transferred to them by virtue of this Act;
- (ii) collect take intercept impound pump use divert and appropriate any water which can or may be intercepted by any of the said works or which the company or the rural council might have collected taken intercepted impounded pumped used diverted or appropriated if this Act had not been passed.

Power to
maintain &c.
transferred
works.

29. Subject to the provisions of this Act the Corporation may make construct lay down and maintain in the lines or situations shown on the deposited plans and according to the

Power to
construct
waterworks.

PART III.
—cont.

levels shown on the deposited sections relating thereto respectively and in upon or under the lands delineated on those plans and described in the deposited book of reference the following works in the county of Oxford (that is to say):—

Work No. 1 An intake and weir across the Sor Brook in the borough and the parish of Bloxham in the rural district of Banbury at a point two hundred and ten yards or thereabouts westward from Wykham Mill;

Work No. 2 A line or lines of pipes commencing in the intake and weir Work No. 1 by this Act authorised and terminating in the parish of Bodicote in the rural district of Banbury in the reservoir Work No. 3 by this Act authorised;

Work No. 3 A reservoir in the said parishes of Bodicote and Bloxham;

Work No. 4 A diversion of the Sor Brook in the said parish of Bloxham or partly in the said parish of Bloxham and partly in the said parish of Bodicote by means of a cut commencing by a junction with that brook at a point immediately downstream of Upper Grove Mill and terminating by a junction with that brook at a point two hundred and thirty yards or thereabouts eastward of the said mill;

Work No. 5 A line or lines of pipes partly in the said parish of Bodicote and partly in the said parish of Bloxham commencing in the said reservoir Work No. 3 by this Act authorised and terminating by a junction with the existing waterworks of the company in the enclosure numbered 5 in the said parish of Bodicote on the 1/2500 Ordnance map (edition of 1923) Oxfordshire sheet No. X.i.

Diversion
of footpath
in parish of
Bodicote.

30.—(1) The Corporation may divert in the manner shown on the deposited plans the footpath in the said parish of Bodicote leading across the site of Work No. 3 by this Act authorised and shown on the deposited plans as intended to be diverted and may stop up and cause to be discontinued as a footpath so much of the said footpath as will be rendered unnecessary by the new portion of footpath shown on the deposited plans:

Provided that the Corporation shall not stop up any portion of the said footpath until two justices shall have certified that the new portion of footpath has been completed to their satisfaction and opened for public use.

(2) As from the date of the said certificate all rights of way over or along the portion of the said footpath so stopped up as aforesaid shall be extinguished and the Corporation may subject to the provisions of Part IV (Minerals underlying water-

works) of the Third Schedule to the Act of 1945 appropriate and use for the purposes of the water undertaking the site of the portion of the said footpath stopped up so far as the same is bounded on both sides by lands of the Corporation:

PART III.
—cont.

Provided that the Corporation shall make full compensation to all persons interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

31. Upon completion of the diversion of the Sor Brook Work No. 4 by this Act authorised the Corporation may stop up and discontinue such portion of the said brook as will be rendered unnecessary by reason of the diversion thereof and may fill in the channel of the said portion and may for the purposes of this Act or any other purposes of the water undertaking appropriate and use the bed banks and channel of the said portion.

Stopping up
&c. of diverted
portion of
Sor Brook.

32.—(1) The Corporation during and for the purpose of the execution of the works by this Part of this Act authorised may temporarily stop up and interfere with any street or road or part of a street or road comprised in the limits of deviation shown on the deposited plans and may for any reasonable time prevent all persons other than those bona fide going to or coming from any premises in the street or road or part of a street or road so stopped up from passing along and using the same.

Temporary
stoppage
of streets.

(2) The Corporation shall provide reasonable access for vehicles and foot passengers bona fide going to or coming from any such premises.

33. If the works authorised by this Part of this Act are not completed on or before the first day of October one thousand nine hundred and fifty-six then as from that day the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed. Provided that the Corporation may extend enlarge alter reconstruct renew or remove any of the works by this Part of this Act authorised and in the case of the lines of pipes so authorised may lay down additional lines of pipes as and when occasion may require.

Period for
completion
of works.

34. Subject to the provisions of this Act the works to be constructed under the authority of this Act and the works and property transferred to the Corporation under or by virtue of Part II of this Act shall for all purposes whatsoever be deemed part of the water undertaking.

New works &c.
to form part
of water
undertaking.

PART III.

—cont.

Power to take
waters of Sor
Brook by
means of
new work.

35. Subject to the provisions of this Act the Corporation may collect intercept abstract impound take use divert and appropriate for the purposes of the water undertaking by means of the intake and weir Work No. 1 authorised by this Act the waters of the Sor Brook and the several feeders and tributaries thereof:

Provided that the Corporation shall not abstract or take from the Sor Brook by means of the said intake and weir Work No. 1 any water from the Sor Brook so as to reduce the quantity of water flowing down the Sor Brook at a point immediately below the point of intake comprised within Work No. 1 authorised by the Act of 1937 to less than three hundred thousand gallons in any day of twenty-four hours calculated from nine in the morning to nine in the following morning.

Amendment
of section 16
of Act of 1937.

36. As from the day of transfer section 16 (Power to take water from Sor Brook) of the Act of 1937 in its application to the Corporation shall be read and have effect as if the words "one million gallons" were substituted therein for the words "eight hundred thousand gallons."

Ascertaining
quantity of
water taken.

37.—(1) Notwithstanding the repeal by this Act of section 17 (Ascertaining quantity of water taken) of the Act of 1937 the Corporation shall as from the day of transfer maintain in good working order to the reasonable satisfaction of the conservators all appliances provided by the company pursuant to subsection (1) of the said section 17 for measuring or otherwise ascertaining and recording the quantity of water collected abstracted diverted or appropriated from the Sor Brook by means of the Work No. 1 authorised by the Act of 1937.

(2) If the Corporation continue to collect abstract divert or appropriate water from the Sor Brook by means of any of the waterworks referred to in subsection (2) of the said section 17 after the expiration of the period of twelve months from the day of transfer they shall at the expiration of such period of twelve months provide and thereafter maintain in good working order to the reasonable satisfaction of the conservators at such convenient place or places as may be agreed between the Corporation and the conservators or failing agreement be determined by arbitration suitable appliances to be reasonably approved by the conservators for measuring or otherwise ascertaining the quantity of water so collected abstracted diverted or appropriated.

(3) For the purpose of ascertaining the quantity of water collected abstracted impounded diverted or appropriated by the Corporation from the Sor Brook by means of Work No. 1 authorised by this Act the Corporation shall provide at such

convenient place or places as may be agreed between the Corporation and the conservators or failing agreement be determined by arbitration suitable appliances to be reasonably approved by the conservators for measuring or otherwise ascertaining and recording the quantity of water so collected abstracted impounded diverted or appropriated. The said appliances shall be so provided by the Corporation before they commence to collect abstract impound divert or appropriate any water from the Sor Brook by means of the said Work No. 1 authorised by this Act and shall thereafter be maintained in good working order to the reasonable satisfaction of the conservators.

(4) The Corporation shall in every week send to the conservators a correct return in writing of the total quantity of water collected abstracted impounded diverted or appropriated by them from the Sor Brook by means of any of the works referred to in this section in each day in the week ending at midnight on the Saturday then last past.

(5) The chief engineer of the conservators and any other person from time to time authorised in writing by him or by the secretary of the conservators shall at all reasonable times have access to all or any part of the premises of the Corporation forming part of the water undertaking for the purpose of inspecting and checking the accuracy of the appliances provided in pursuance of the said section 17 of the Act of 1937 or to be provided in pursuance of this section and of checking the returns made by the Corporation and the Corporation shall give to such engineer or other person all necessary facilities for inspecting and checking such appliances and returns as aforesaid.

(6) If any dispute shall arise between the conservators and the Corporation with respect to the suitability accuracy or user of the appliances provided or to be provided as aforesaid or to the correctness of any return by this section required to be made by the Corporation or on any other question arising under this section the matter shall be settled by arbitration.

38.—(1) As from the day of transfer the Corporation shall Payments within fourteen days from the thirtieth day of June and the for water. thirty-first day of December in every year pay to the conservators for water collected abstracted impounded diverted or appropriated by the Corporation from the Sor Brook by means of all or any of the waterworks referred to in the section of this Act of which the marginal note is "Ascertaining quantity of water taken" such sums as after the deduction of the income-tax payable thereon will amount to the sums following (that is to say):—

(a) If the water so collected abstracted impounded diverted or appropriated during the six months

PART III.
—cont.

preceding such thirtieth day of June or thirty-first day of December (as the case may be) shall not exceed the average daily quantity of three hundred thousand gallons the sum of twenty-five pounds;

- (b) If the water so collected abstracted impounded diverted or appropriated during such period of six months shall exceed the average daily quantity of three hundred thousand gallons but shall not exceed the average daily quantity of three hundred and fifty thousand gallons the sum of thirty pounds and so on with an addition of five pounds for each additional average daily quantity of fifty thousand gallons or part thereof so taken as aforesaid.

(2) The payments to be made by the Corporation to the conservators under this section shall be carried to the conservancy fund as defined by the Thames Conservancy Act 1932.

22 & 23 Geo. 5.
c. xxxvii.

For protection
of conservators.

39. For the protection of the conservators the following provisions shall unless otherwise agreed between the Corporation and the conservators have effect (that is to say):—

- (1) In this section “the said works” means Works Nos. 1 2 3 4 and 5 and all other works whether temporary or permanent authorised by this Act so far as they affect the Sor Brook:
- (2) Notwithstanding anything shown on the deposited plans and sections the portions of the said works crossing the Sor Brook shall be laid at such level below the bed of the said brook as may be reasonably approved by the conservators:
- (3) The said works shall be executed in accordance with plans elevations and sections to be submitted to and to be subject to the reasonable approval of the conservators and shall be executed and maintained under the superintendence (if given) and to the reasonable satisfaction of the chief engineer of the conservators:

Provided that if the conservators do not within twenty-one days after such submission signify their disapproval of such plans elevations and sections together with their grounds for such disapproval they shall be deemed to have approved thereof:

- (4) The said works shall be so constructed as to cause as little interruption as reasonably possible to the flow of water in the Sor Brook:

- (5) The Corporation shall give to the conservators at least fourteen days' notice in writing of the time of the commencement of any of the said works:
- (6) The said works when commenced shall be proceeded with and completed as quickly as reasonably possible:
- (7) The Corporation shall on the completion of such of the said works as are of a permanent nature and upon reasonable notice from the conservators so to do remove the whole and every part of such of the said works as are of a temporary nature and materials therefor which may have been placed in the Sor Brook by or at the instance of the Corporation and in particular all piles and other works in the bed of the said brook shall be drawn and not cut off and on the Corporation failing so to do the conservators may remove the same and the Corporation shall repay to the conservators the expenses reasonably incurred in so doing:
- (8) The Corporation shall not (except so far as shall be necessary in the construction of the said works) take any gravel soil or other material from the bed of the Sor Brook:
- (9) The weir Work No. 1 authorised by this Act shall be fitted with such moveable sluices as may be reasonably required and approved by the conservators. The said weir and sluices shall be controlled by the Corporation subject to the reasonable requirements of the conservators:
- (10) Notwithstanding the repeal by this Act of section 46 (Contracts for supplying water in bulk) of the Act of 1937 the Corporation shall for the purposes of subsection (2) of section 12 (Supply of water in bulk by agreement or compulsorily) of the Act of 1945 in the application of that section to the Corporation be deemed on and after the day of transfer to be undertakers having power under an enactment other than the said section 12 to supply water in bulk subject to a prohibition against supplying water in bulk outside or for consumption or use outside the area included within the limits shown on the "deposited map" as such map is defined by section 119 of the Thames Conservancy Act 1932:
- (11) Any difference which may arise between the Corporation and the conservators under this section shall be settled by arbitration.

PART III.

—*cont.*Power to
take lands.

40.—(1) Subject to the provisions of this Act the Corporation may enter upon take and use such of the lands delineated upon the deposited plans and described in the deposited book of reference as they may require for the purposes of or in connection with the works authorised by this Act.

(2) Subject to the provisions of this Act the Corporation may purchase take and use so much of the lands in the parish of Bodicote in the rural district of Banbury comprised within the limits of land which may be acquired marked on the deposited plans as may be required for the protection against pollution of the water in the reservoir Work No. 3 authorised by this Act or for the deposit of spoil excavated in the construction of the works by this Act authorised or for other purposes of the water undertaking.

Compensation
in case of
recently
altered
buildings
acquired by
Corporation.

41. In settling any question of disputed purchase money or compensation under this Act the arbitrator shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the lands created after the first day of November one thousand nine hundred and forty-five if in the opinion of the arbitrator the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Power to enter
upon property
for survey &c.

42. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may from time to time at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards from time to time twelve hours' previous notice enter upon and into the lands houses and buildings authorised by this Act to be taken and used or any of them or any premises in respect of which a claim for compensation under this Act is received for the purpose of surveying and valuing the said lands houses and buildings and of inspecting the said premises without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands houses buildings or premises.

Power to
Corporation to
make
agreements
with owners of
property &c.

43. The Corporation may subject to the provisions of this Act enter into and carry into effect agreements with any person being the owner of or interested in any lands or property abutting on any portion of the lands which the Corporation may acquire under the powers of this Act with respect to the sale by the Corporation to such person of any lands or property for such consideration as may be agreed upon between the Corporation and such person and the Corporation may accept

as satisfaction of the whole or any part of such consideration the grant by such person of any lands or property required by the Corporation for the purposes of this Act.

PART III.
—cont.

44. At any time after notice to treat has been served for any land which the Corporation are by this Act authorised to purchase compulsorily the Corporation may after giving to the owner and occupier of the land not less than fourteen days' notice enter on and take possession of the land or such part thereof as is specified in the notice without previous consent or compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845 but subject to the payment of the like compensation for the land of which possession is taken and interest on the compensation awarded as would have been payable if those provisions had been complied with.

Further
powers of
entry.

45.—(1) Where the Corporation are empowered by this Act to acquire compulsorily any lands for the purposes of any underground works authorised by this Part of this Act they may in lieu of acquiring those lands acquire only such easements and rights over under or in those lands as may be sufficient for the said purposes and may give notice to treat in respect of those easements and rights and the provisions of the Lands Clauses Acts shall apply in relation to the acquisition thereof as if they were lands within the meaning of those Acts.

Power to
acquire
easements for
underground
works.

(2) The Corporation shall not be required or except by agreement be entitled to fence off or sever from adjoining lands any lands in respect of which they have acquired only easements or rights under the provisions of this section and subject to those easements or rights and to any other restrictions imposed by this Act the owners or occupiers for the time being of those lands shall have the same rights of using and cultivating them as if this Act had not been passed.

46.—(1) If there is any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices having jurisdiction in the place in which the lands are situate for the correction thereof.

Correction
of errors
in deposited
plans and
book of
reference.

(2) If on any such application it appears to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described.

(3) Any such certificate or a copy thereof shall be deposited with the clerk of the county council of the administrative county of Oxford and a duplicate thereof shall be deposited with the clerk of the county district in which the lands are

PART III.
—cont.

situate and if the lands are situate in a rural parish with the clerk of the council of that parish or if there be no parish council then with the chairman of the parish meeting of the parish and thereupon the deposited plans and book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with the certificate.

(4) Any certificate or copy and duplicate deposited under this section shall be kept by such clerks respectively or by the chairman for the time being of such parish meeting (as the case may be) with the other documents to which the same relate.

Period for
compulsory
purchase of
lands.

47. The powers of the Corporation for the compulsory purchase or taking of lands under the provisions of this Act shall cease on the first day of October one thousand nine hundred and forty-nine.

For protection
of Shropshire
Worcestershire
and
Staffordshire
Electric Power
Company.

48.—(1) Notwithstanding anything in this Act or shown on the deposited plans the Corporation shall not without the consent of the Shropshire Worcestershire and Staffordshire Electric Power Company (in this section referred to as "the company") take or use any part of the electric line of the company which crosses the properties numbered on the deposited plans 14 and 15 in the parish of Bodicote or any pillar or support of that electric line.

45 & 46 Vict.
c. 56.

62 & 63 Vict.
c. 19.

(2) Nothing in this Act shall extend to or authorise any interference with any electric line or work of the company to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with the provisions of that section and of section 17 of the schedule to the Electric Lighting (Clauses) Act 1899 and those provisions shall be deemed for the purposes of this subsection to extend to and include any lines or works of the company placed upon or above ground.

PART IV.

SUPPLY OF WATER.

Limits of
supply.

49. The limits within which the Corporation are authorised to supply water shall be and include—

(1) as on and from the day of transfer—

(a) in the county of Oxford—

the borough; and

the parishes of Bloxham Bodicote East Adderbury Milton and West Adderbury all in the rural district of Banbury;

(b) in the county of Northampton—

the parish of Warkworth in the rural district of Brackley;

(2) as on and from the expiration of eighteen months from the date of the passing of this Act—

the parishes of Alkerton Barford Saint John and Saint Michael Bourton Broughton Claydon with Clattercote Cropredy Drayton Epwell Hanwell Hook Norton Horley Hornton Milcombe Mollington North Newington Prescote Shenington Shutford Sibford Ferris Sibford Gower South Newington Swalcliffe Tadmarton Wardington Wigginton and Wroxton all in the said rural district of Banbury.

50.—(1) The rate which the Corporation may charge in accordance with section 46 (Water rates) of the Third Schedule to the Act of 1945 as incorporated with this Act for the supply of water to any premises for domestic purposes shall not exceed a rate per annum of three shillings in the pound: Rates for domestic supply.

Provided that the Corporation shall not be required to supply any premises with water at a less sum than four pence per week.

(2) For the purposes of paragraph (b) of subsection (1) of the said section 46 the proportion of the net annual value of the premises referred to in that paragraph on which such rate as is referred to in subsection (1) of this section may be charged shall be seventy-five per centum of such net annual value.

51. The prescribed sum for the purposes of subsection (1) of section 48 (Additional charges where water supplied for domestic purposes and paid for by water rates is used for other purposes) of the Third Schedule to the Act of 1945 as incorporated with this Act shall be twenty-five shillings. Additional charges for gardens hoses, &c.

52.—(1) The price to be charged by the Corporation for a supply of water by meter shall not exceed three shillings per thousand gallons. Price of water supplied by meter.

(2) The price prescribed by subsection (1) of this section shall be the prescribed charge for the purposes of subsection (3) of section 49 (Power to require supply to certain premises and for certain purposes to be taken by meter) and paragraph (i) of section 50 (Power to require supplies for refrigerating or water softening apparatus &c. to be taken by meter) of the Third Schedule to the Act of 1945 as incorporated with this Act. Provided that nothing in this Act shall prejudice the right of the Corporation to make such a minimum annual charge as is referred to in subsection (3) of the said section 49.

53. When at the request of and for the convenience of any person who takes a supply of water by meter from the Corporation the reading of any meter in any premises takes place at a time other than that of the usual periodical reading the Corporation may levy and recover such charges as they think fit not exceeding the sum of one shilling for each such special reading. Charges for special readings of meters.

PART IV.

—cont.

For protection
of Great
Western
Railway
Company.

54. On and from the expiration of eighteen months from the date of the passing of this Act the provisions of section 34 (For protection of Great Western Railway Company) of the Act of 1937 shall extend and apply to the exercise by the Corporation of the powers of this Act in the parishes mentioned in paragraph (2) of the section of this Act of which the marginal note is "Limits of supply" as well as in the borough and the parishes mentioned in paragraph (1) of that section.

PART V.

FINANCIAL AND MISCELLANEOUS.

Power to
borrow.

55.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and they shall pay off all moneys so borrowed within such periods as the Corporation may determine not exceeding those respectively mentioned in the third column of the said table (namely):—

Purpose.	Amount.	Period for repayment.
(a) The purchase of the undertaking of the company including the payment of any sum required for the purpose of paying sums of money to stockholders of the company or paying off any mortgages of the company or for paying the costs and expenses incidental to the transfer of the undertaking of the company to the Corporation (other than the costs of this Act) so far as the same are payable by the Corporation and of any sums payable to any director auditor officer or servant as compensation under this Act.	The sum requisite	Sixty years from the date or respective dates of borrowing.
(b) The purchase of lands and easements and the construction of the Works Nos. 3 and 4 authorised by this Act.	£34,650	Sixty years from the date or respective dates of borrowing.
(c) The construction of the works authorised by this Act other than Works Nos. 3 and 4.	£10,750	Forty-five years from the date or respective dates of borrowing.
(d) Water mains and other waterworks purposes.	£50,000	Thirty years from the date or respective dates of borrowing.
(e) The payment of the costs charges and expenses of this Act.	The sum requisite	Five years from the passing of this Act.

Provided that it shall not be obligatory upon the Corporation to commence the repayment (by sinking funds or otherwise) of any moneys to be borrowed under this Act for the purposes (b) until the completion of Work No. 3 authorised by this Act or until the expiration of five years from the date or dates of borrowing whichever shall first happen.

PART V.
—cont.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

(3) For the purposes of Part IX of the Act of 1933 the fixed period for the repayment of the mortgages transferred to the Corporation under the section of this Act of which the marginal note is "As to mortgages of company" shall be sixty years.

56. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Act 1939 or under that Act as extended by any subsequent enactment including the Supplies and Services (Transitional Powers) Act 1945 or so long as the borrowing of money in Great Britain without the consent of the Treasury is prohibited by an Order made under section 1 of the Borrowing (Control and Guarantees) Act 1946 it shall not be lawful otherwise than by the use of the Corporation's internal funds to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act as hereinafter defined) without such consent:

Saving for
powers of
Treasury.
2 & 3 Geo. 6.
c. 62.
9 Geo. 6.
c. 10.
9 & 10 Geo. 6.
c. 58.

Provided that nothing in this section shall deprive the Corporation of the benefit of any exemptions conferred by any such regulation as aforesaid or the Borrowing (Control and Guarantees) Act 1946 or any order made thereunder.

57. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 but this section shall not apply to the creation of Corporation four per centum stock in accordance with the provisions of the section of this Act of which the marginal note is "Creation of stock as consideration for transfer" or to the issue of such stock to give effect to the provisions mentioned in subsection (1) of that section.

Saving for
Local
Authorities
Loans Act
1945.
8 & 9 Geo. 6.
c. 18.

PART V.

—cont.

Creation of
stock as
consideration
for transfer.

58.—(1) On the day of transfer there shall by virtue of this section be created so much stock to be called “ Corporation four per centum stock ” as may be necessary to give effect to the provisions of the sections of this Act of which the marginal notes are respectively “ Consideration for transfer of undertaking of company ” “ As to mortgages of company ” and “ Compensation to directors and auditors of company.”

(2) The provisions of the Act of 1933 shall with any necessary modification apply with reference to such stock as if the Corporation were exercising a power to borrow money for payment of a sum equal to the nominal amount of such stock.

(3) Such stock shall carry interest at the rate of four per centum per annum (payable half-yearly) as from the day of transfer and shall be transferable in multiples of one pound and shall be redeemable by the Corporation at par after the expiration of forty-five years from the day of transfer but the Corporation may purchase the stock or any part thereof for cancellation by agreement with the holders at any time. The whole of such stock shall be redeemed or purchased and extinguished at or before the expiration of sixty years from the day of transfer.

(4) Such stock and all interest accrued or to accrue due thereon shall be charged indifferently on the revenues of the Corporation.

(5) The provisions of the Local Authorities (Stock) Regulations 1934 which are set out in the first column of the Fourth Schedule to this Act and any regulations amending the same shall subject to the provisions of this Act and subject to the modifications set out in the second column of the said schedule apply to the creation issue transfer and redemption of and other dealings with the stock created by virtue of this section as if the same were duly created and issued by the Corporation under the provisions of the Act of 1933 and the Local Authorities (Stock) Regulations 1934:

Provided that the amounts of the several contributions from the revenues of the Corporation payable in each year for the redemption and extinction or purchase and extinction of stock issued under this section shall be determined by paragraph (a) of article 7 (1) of the Local Authorities (Stock) Regulations 1934 and the rate per centum per annum for the purposes of those provisions shall be three pounds or such other rate as the Minister may from time to time approve.

Application of
Act of 1933 to
existing
sinking funds.

59. Sections 213 and 214 of the Act of 1933 shall apply with respect to any sinking fund formed by the Corporation for the repayment of any money borrowed (otherwise than by the issue of stock) before the passing of this Act under any statutory borrowing power as if it had been borrowed by way of

mortgage and the Corporation shall make such adjustments of any existing sinking funds as may be proper.

PART V.
—cont.

60.—(1) The Corporation shall keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings of the Corporation as from time to time existing from which revenue is derived (each of which is in this section separately referred to as “the undertaking”) on the one side all receipts in respect of the undertaking (including the income from any authorised fund provided in connection with the undertaking) and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts representing—

Accounts.

- (a) the working and establishment expenses and cost of maintenance of the undertaking;
- (b) the interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking or used or applied for those purposes in pursuance of section 8 of the Local Authorities Loans Act 1945 or the section of this Act of which the marginal note is “Consolidated loans fund”;
- (c) the requisite appropriations instalments or sinking fund payments in respect of money so borrowed or used or applied as aforesaid;
- (d) all other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) the amount (if any) credited to any reserve fund which the Corporation are for the time being authorised to maintain;
- (f) any money applied in any of the ways mentioned in paragraph (a) or paragraph (b) of subsection (1) of the section of this Act of which the marginal note is “Application of general rate fund for certain purposes.”

(2) The Corporation shall show in the accounts relating to the undertaking all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments debits and liabilities which from time to time ought to be so apportioned or carried.

PART V.
—cont.
Application of
general rate
fund for
certain
purposes.

61.—(1) If in respect of any year the moneys received by the Corporation on account of the revenue of any of the undertakings (in this section separately referred to as “the undertaking”) of the Corporation from which revenue is derived (including the interest and other annual proceeds received by the Corporation in that year on the investments representing or forming part of any authorised fund provided in connection with the undertaking) shall exceed the moneys expended or applied by the Corporation in respect of that undertaking for the several purposes mentioned in paragraphs (a) (b) (c) and (d) of subsection (1) of the section of this Act of which the marginal note is “Accounts” the Corporation may in respect of that year (if they think fit) apply out of the general rate fund a sum not exceeding the amount of such excess in any of the following ways:—

- (a) in the reduction of capital moneys borrowed for the purposes of the undertaking;
- (b) in the renewal or the construction extension or improvement of any works and conveniences for the purposes of the undertaking or otherwise for the benefit of the undertaking; and
- (c) in providing a reserve fund in respect of the undertaking by setting aside such an amount as the Corporation may from time to time think reasonable and (unless the amounts so set aside are used or applied under the provisions of the section of this Act of which the marginal note is “Consolidated loans fund”) investing the same in statutory securities until the reserve fund so provided amounts to the maximum for the time being prescribed by the Corporation.

(2) Any reserve fund provided under this section may be applied—

- (a) in making good to the general rate fund any deficiency at any time happening in the income of the Corporation from the undertaking in connection with which it is formed; or
 - (b) in meeting any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking; or
 - (c) in or towards the payment of the cost of renewing improving or extending any works forming part of the undertaking or otherwise for the benefit thereof;
- and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(3) Resort may be had to a reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

PART V
—cont.

62. The sections of this Act of which the marginal notes are respectively "Accounts" and "Application of general rate fund for certain purposes" shall be deemed to have come into operation on the first day of April one thousand nine hundred and forty-six.

Date of
operation
of certain
sections of
Part V of Act.

63.—(1) Notwithstanding anything contained in this or any other Act or any Order on and after the thirty-first day of March one thousand nine hundred and forty-seven the Corporation may (if they think fit) establish a fund to be called "the consolidated loans fund" to which shall be paid—

Consolidated
loans fund.

- (a) all moneys borrowed by the Corporation by the issue of any authorised securities together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose; and
- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the re-payment of debt:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys in the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the redemption of authorised securities the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Corporation; and
- (b) in the exercise of any statutory borrowing power by the transfer of the required amount to the appropriate fund and account of the Corporation:

And the moneys in the consolidated loans fund not used or applied in these ways or intended to be so used or applied within a reasonable period shall be invested in statutory

PART V.
—cont.

securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys in the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided in this section.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet the interest charges and the financing and other revenue expenses connected with the management of that fund and separate accounts shall be kept of these sums and their application.

(4) The Corporation may pay into the consolidated loans fund any moneys forming part of any reserve capital renewals repairs depreciation contingency superannuation or other similar fund (in this section respectively referred to as "the lending fund") and not for the time being required for the purposes for which the lending fund was established and such moneys shall be deemed to be moneys borrowed by the Corporation within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions:—

(a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the lending fund was established; and

(b) There shall be paid out of the consolidated loans fund to the general rate fund an amount equal to the interest on any moneys so used and for the time being not repaid to the lending fund at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the average rate of interest payable by the Corporation on their current borrowings and in the accounts of the general rate fund an amount equal to the interest as aforesaid shall (subject to any prescribed limit on the amount of the lending fund) be credited to the lending fund.

(5) Save as in this section expressly provided all the obligations of the Corporation to the holders of authorised securities shall continue in force.

(6) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be made by the Corporation and approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

(7) Any scheme approved by the Minister under this section may from time to time be altered extended amended or revoked by a scheme made and approved in like manner as the original scheme.

64. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him by or the giving of consents under this Act as if such powers were conferred by and such consents were required to be given under the Act of 1933 and section 290 of that Act shall apply accordingly.

PART V.
—cont.
Inquiries by
Minister.

65. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act and any local enactment for the time being in force in the borough as if the same were re-enacted therein.

Application of
section 265 of
Public Health
Act 1875.
38 & 39 Vict
c. 55.

66. Subsection (4) of section 1 of the Emergency Powers (Defence) Act 1939 as amended by subsection (2) of section 1 of the Emergency Powers (Defence) Act 1940 shall have effect as if this Act had been passed before the commencement of the last-mentioned Act.

Application of
Emergency
Powers
(Defence) Acts
1939 and 1940.
3 & 4 Geo. 6.
c. 20.

67. The provisions of the Town and Country Planning Acts 1932 and 1943 and the Town and Country Planning Act 1944 and of any order scheme or regulation made under those Acts or under any enactment repealed by those Acts so far as those provisions are from time to time in force in respect of the land on which any development within the meaning of those Acts is carried out under this Act shall apply to that development.

Saving for
town and
country
planning.

68. Nothing in this Act affects prejudicially any estate right Crown rights.
power privilege or exemption of the Crown.

69. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be borne and paid by the Corporation out of the general rate fund and general rate or out of moneys to be borrowed under the authority of this Act for that purpose.

Costs of Act.

The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

PARTICULARS OF MORTGAGES OF COMPANY.

Present mortgagees.	Amount.	Rate of interest.
Maud Elizabeth Charlton	£1,000	4½ per centum per annum.
Dorothea Evans	£1,000	4½ per centum per annum.
Alliance Assurance Company Limited ...	£200	4½ per centum per annum.
Arthur Britten Franey Elizabeth Caroline Matthews and Gerald Blandford Matthews executors of Edward Franey deceased.	£700	4 per centum per annum.
Barclays Bank Limited as trustees for C. Wells deceased.	£2,000	4 per centum per annum.
Barclays Bank Limited	£25,000	4 per centum per annum.

SECOND SCHEDULE.

PENSIONS PAYABLE BY CORPORATION TO OFFICERS AND SERVANTS OF THE COMPANY.

PART I.

¹ Name.	² Amount of pension.
Hugh Cory Stilgoe	One hundred pounds per annum.
John Henry Nevile	Ten shillings per week.

PART II.

I Name.	2 Amount of pension.	3 Conditions.
John Ernest Commin.	An amount equal to half the amount paid to him by way of salary (including bonus) immediately before the day of transfer or the date of his retirement whichever is the later but not being less than one-half of the total amount of his salary and bonus on the first day of January one thousand nine hundred and forty-six.	Payable on and from the day of transfer or if his services are retained by the Corporation on and from the date of retirement on attaining the age of sixty-five years.
William Richard Bennett.	(i) Fifty pounds per annum; or (ii) If he elects to join the service of the Corporation an amount proportionate to his salary and bonus at the date of retirement but not less than fifty pounds per annum.	Payable on and from the day of transfer if he retires on that day. Payable on and from the date of retirement or on attaining the age of sixty-five years whichever be the earlier.
Alfred James Rymell.	Two pounds per week.	Payable in accordance with the agreement dated the thirteenth day of June one thousand nine hundred and forty-four and made between the company and the said Alfred James Rymell.

THIRD SCHEDULE.

PROVISIONS OF BANBURY WATERWORKS ACTS AND ORDERS 1865 TO 1943 SAVED FROM REPEAL.

- The Banbury Waterworks Act 1865—
Section 30 (Power to maintain works) ;
Section 31 (Company not to deviate the pipe or pipes which are carried under or over the Great Western Railway) ;
Section 39 (As to drainage of Grimsbury Mills).
- The Act of 1937—
Section 16 (Power to take water from Sor Brook) as amended by this Act ;
Section 19 (For protection of Conservators) ;

Section 20	(For protection of the Ecclesiastical Commissioners for England) ;
Section 21	(For protection of George Creswell Bond and Edgehill Limited) ;
Section 22	(For protection of Charles Norman Keyser) ;
Section 23	(For protection of Archibald Tisdal Johns) ;
Section 24	(For protection of the Shropshire Worcestershire and Staffordshire Electric Power Company) ;
Section 26	(For protection of Postmaster-General) ;
Section 34	(For protection of Great Western Railway Company).

FOURTH SCHEDULE.

PROVISIONS OF LOCAL AUTHORITIES (STOCK) REGULATIONS 1934
APPLIED.

Article of Local Authorities (Stock) Regulations 1934.	Modification.
5 to 7 (inclusive)	—
9 to 13 (inclusive)	—
16 to 19 (inclusive)	—
21 to 23 (inclusive)	—
24	The omission of the words " Unless the local authority have compounded for stamp duty " and the words " notwithstanding anything in any resolution of the local authority or in these regulations."
25 to 31 (inclusive)	—
37 to 40 (inclusive)	—
42	—
43	The omissions of paragraphs (a) and (b) and of the words " stock certificate to bearer " in paragraph (c).
44	—
45	The omission of paragraph (1).
The schedule ...	Only so much as relates to article 44 of the regulations.

Printed by Sir NORMAN GIBB SCORGIE, C.V.O., C.B.E.,
Controller of His Majesty's Stationery Office
and
King's Printer of Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 13a Castle Street, Edinburgh 2;
39-41 King Street, Manchester 2; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 1s. 6d. net